

		Plaintiff to give notice.
3.	30-2024-01423858-CU-WM-CJC S. vs. Regents of the University Of California	Before the Court are two (2) Motions to Compel Further Production of Documents (“Motions”), brought by plaintiff Z.S. (“Plaintiff”), against defendants Regents of the University of California (“Regents”) and Howard Gillman (“Gillman”) (collectively, “Defendants”). ROA 178. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2031.240 and 2031.310, compelling Defendants to serve further documents responsive to Requests for Production, Set One, Nos. 11-73 and 76-88, and to produce a privilege log substantiating Defendants’ objections on privilege grounds. ROA 178, pp. 5, 10. Defendants request that the Court deny Plaintiff’s Motions in their entirety. ROA 205, p.14. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Demands California Code of Civil Procedure Section 2031.310 allows the requesting party to move for an order compelling further response to a [production] demand if, among other things, the demanding party deems that “[a] statement of compliance . . . is incomplete[,] [a] representation of inability to comply is inadequate, incomplete, or evasive[,] or [a]n objection in the response is without merit or too general.” Cal. Civ. Proc. Code § 2031.310(a). The motion must be accompanied by a meet and confer declaration and must set forth specific facts showing good cause justifying the discovery demand. Cal. Civ. Proc Code § 2031.310(b). Effective January 1, 2026, a meet and confer declaration “shall state facts showing a reasonable and good faith

		attempt” on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party’s declaration “shall include whether the moving party has met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). Here, Plaintiff served the herein Motions upon Defendants on June 1, 2026, by email. ROA 174. Therefore, the Motion is subject to the updated meet and confer requirements of California Code of Civil Procedure Section 2016.040(b). The Court finds that Plaintiff’s Declaration, in Support of Plaintiff’s Motions, lacks an attestation that the parties met and conferred regarding the retention of a certified court reporter to report the hearing on the Motions. <i>See generally</i> ROA 176. Consequently, Plaintiff’s Motions are procedurally invalid and are therefore DENIED. Sanctions re: Motions to Compel Further Responses to Discovery ‘Whenever one party’s improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court’s intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.’” <i>Ellis v. Toshiba Am. Info. Sys. Inc.</i>, 218 Cal. App. 4th 853, 878 (2013) (quoting <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1286-1287). Courts must impose monetary sanctions against any party that unsuccessfully makes or opposes a motion to compel further responses to interrogatories or demands for production, absent a finding that the party “subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(h). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal.
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		App. 4th 1424, 1434 (2011). Here, Plaintiff does not offer, and the Court does not find, any substantial justification for Plaintiff's failure to satisfy the clear requirements of California Code of Civil Procedure Section 2016.040 in making this motion. However, neither Plaintiff nor Defendants seek sanctions in this matter. As neither party is on notice of the potential imposition of monetary sanctions, to impose sanctions at this juncture would violate due process. Accordingly, the Court finds that the imposition of sanctions would result in injustice. The Court exercises its discretion not to impose sanctions. Accordingly, Plaintiff's Motion to Compel Further Responses to Requests for Production (ROA 178) is DENIED. Defendant to give notice.
4.	30-2025-01502640-CU-BT-CJC Flexpoint, Inc. vs. Felix	Before the Court are a Motion for Reconsideration brought by movant Brenda Felix ("Movant") ROA 215. Additionally, an Ex-Parte Application is brought by the Movant and nonparty MFOX Law Group, Inc. (collectively "Defendants") ROA 224. Movant requests an order, pursuant to California Code of Civil Procedure Sections 1008 and 473, vacating or modifying its July 8, 2026, Order (ROA 205) granting plaintiff and cross defendant Flexpoint Inc.'s Motions to Compel Further Responses to Requests for Production ("MF-PROD"), Special Interrogatories ("MF-SROG"), and Form Interrogatories ("MF-FROG") (collectively "Motions"), and imposing monetary discovery sanctions upon Movant in the amount of \$6,000. ROA 215. Additionally, "Defendants" seeks an order, pursuant to California Code of Civil Procedure Section 918, temporarily staying enforcement of the Court's Order (<i>see supra</i>) pending the Court's determination of Movant's Motion for Reconsideration, or granting other relief as the Court deems just and appropriate. (ROA 215). ROA 224, p.2.